

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday July 27, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
21-CIV-04741	MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL.
LINE 1	
MICHAEL D. LIBERTY	PRO PER
RONALD O'CONNELL	EDWARD S. ZUSMAN

DEFENDANTS RONALD O'CONNELL AND PENCOMP, INC.'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT CCP 877.6

TENTATIVE RULING:

Defendants Pencomp, Inc. and Ronald O'Connell's unopposed Motion for Determination of Good Faith Settlement is GRANTED pursuant to Code Civ. Proc. section 877.6.

Code of Civ. Proc. section 877.6 authorizes trial courts to determine whether a settlement between a claimant and a joint tortfeasor was made in good faith. (Code of Civ. Proc. section 877.6.) A determination of good faith bars other joint tortfeasors from claims for equitable comparative contribution or partial or comparative indemnity based on comparative negligence or comparative fault. (*Id.*) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settling defendant's liability to be (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251; *PacificCare of California v. Bright Medical Associates, Inc.* (2011) 198 Cal.App.4th 1451.) The California Supreme Court in *Tech-Bilt* established that "a defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be" (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488 ("*Tech-Bilt*").)

The non-exhaustive factors for making a determination of good faith settlement are provided by the *Tech-Bilt* case, and include a rough approximation of the plaintiff's total recovery and the settlor's proportionate liability; the amount paid in settlement; the allocation of settlement proceeds among plaintiffs; the recognition that a settlor should pay less in settlement than he would if he were found liable after trial; the financial conditions and insurance limits of settling defendants; and the existence of fraud, collusion, or tortious conduct aimed to injure the interests of non-settling defendants. (*Tech-Bilt*, 38 Cal.3d at 499; *see also Long Beach Memorial Medical Center v. Super. Ct.*, (2009) 172 Cal. App. 4th 865, 873.)

Where the good faith of a settlement agreement is challenged, the party asserting the lack of good faith shall have the burden of proof on that issue. (Cal. Code of Civil Procedure, section 877.6(d).) "[W]hen the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the *Tech-Bilt* factors" but "when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient." (*City of Grand Terrace v. Superior Court* (1987) 192 Cal. App. 3d 1251, 1261.)

Here, the moving Defendants' counsel establishes a background of the case as it pertains to them. (McMahon Decl., ¶¶6-8.) "Pursuant to the Settlement, Pencomp Defendants are to pay \$22,500.00 to

fully and finally resolve all of Plaintiff's claims against them, conditioned upon a finding that their settlement is in good faith pursuant to Code of Civil Procedure section 877.6. The settlement amount of \$22,500.00 fairly represents the Pencomp Defendants' risks and Plaintiff's likelihood of prevailing on the merits of his claims." (*Id.*, at ¶9.) Counsel for all parties except Defendant Sarah Hillhouse stipulated to the good faith nature of the settlement. (*Id.*, at ¶¶2-3.) Defendant Sarah Hillhouse did not respond to Defendants' requests to stipulate and has not filed any opposition to this Motion. (*Id.*, at ¶5.) Defendants' showing satisfies the requirements of Code of Civ. Proc. section 877.6 and the unopposed Motion is accordingly GRANTED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-04969 GUILLERMO CORONEL VS. LARELL CARL FRANKLIN

LINE 2

GUILLERMO CORONEL
LARELL CARL FRANKLIN

CESAR R. FUMAR

PLAINTIFF GUILLERMO CORONEL'S MOTION TO VACATE ENTRY OF DEFAULT

TENTATIVE RULING:

The unopposed motion to vacate default judgment is granted pursuant to Code of Civil Procedure Section 187. The default entered on June 20, 2024 was premature because no statement of damages was served prior to entry as required by Code of Civil Procedure Section 425.11. Accordingly the Court hereby ORDERS the default VACATED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

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02:00 PM

25-CIV-02345

CARRIE WONG VS. ANNIE MACH, DOCTOR OF DENTAL SUR, ET AL.

LINE 3

CARRIE WONG
ANNIE MACH

PRO PER
MICHAEL K. PAZDERNIK

PLAINTIFF CARRIE WONG'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiff Carrie Wong's Motion for Leave to File Third Amended Complaint is GRANTED.

The initial Complaint was filed on April 2, 2025. It was quickly amended to substitute Defendant Bayhill Dental Care, Inc. ("Bayhill") for a prior defendant named as "Bayhill Dental." (See Apr. 25, 2025, ¶¶ 1–2.) After Plaintiff Carrie Wong began representing herself in this action, she filed the Second Amended Complaint ("SAC") on July 25, 2025, now referring to Bayhill as the fictitious business name of Luisa Diaz and adding three causes of action for misrepresentation and UCL violations. (Jul. 25, 2025, ¶¶ 2, 10–14, 19–23, 33–36.) Because Wong did not seek or receive leave of court to do so, the Court struck the SAC *sua sponte*. (Sep. 10, 2025 Order.) Wong then filed the instant motion seeking leave to file a proposed third amended complaint.

A court may, in its discretion, allow amendment to any pleading upon any terms as may be just after notice to the adverse party. (Code of Civ. Proc., § 473, subd. (a); see *id.*, at § 576.) Motions for leave to amend are directed to the sound discretion of the judge, but that discretion must be "exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) "California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Douglas v. Superior Ct.* (1989) 215 Cal. App. 3d 155, 158.)

If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) However, "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)

Bayhill, along with Defendant Annie Mach who joins in Bayhill's opposition, contends that the new allegations and causes of action to be added by the proposed amended complaint are not "new or different facts," citing *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468. *Herr* is a motion for reconsideration case. Instead, when a party moves to amend based upon facts known from the outset of the case, the question is whether or not the moving party lacked diligence in bringing the motion and what effect any delay will have on the defendants. (*Landis v. Superior Court* (1965) 232 Cal.App.2d 548, 557.) And, when the motion is made "at a stage in the proceeding where pretrial or trial had not been set

... it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend.” (*Id.*).

Here, the primary substance of the proposed amended complaint was set forth in the SAC, filed just three months after the action was filed. Wong filed the instant motion less than two months after the SAC was stricken. No trial is set, and no defendant has taken any meaningful action except to oppose this motion. There is hardly any delay to excuse, there is no identified prejudice to any defendant, and it does not appear Wong lacked diligence in bringing the motion.

Bayhill’s only other objection to amendment is the motion’s purported failure to comply with the California Rules of Court. Those rules require a motion to amend must “(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules of Court, rule 3.1324(a).) The motion must also be accompanied by a declaration specifying “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (*Id.*, at rule 3.1324(b).)

The motion identifies the changes made in the proposed complaint from as compared to the prior, unstricken FAC by page and line number. (Nov. 7, 2025 Motion, p. 3.) While the statement of changes is quite unspecific, the lack of specificity is understandable given the substantial reformatting and renumbering of the general allegations and the interspersal of new causes of action. (See Apr. 25, 2025 First Amended Complaint, *passim*; Nov. 7, 2025 Declaration of Carrie Wong, exh. A, *passim*.) The motion substantially complies with rule 3.1324(a).

The declaration accompanying the motion also states the effect of the amendment and why it is necessary and proper. (Nov. 7, 2025 Declaration of Carrie Wong, pp. 1–2.) It is also supplemented by the declaration offered in reply with further details and further specification of when Wong discovered the facts underlying amendment and why the motion was filed at the time it was, the absence of the declaration’s intended attachments notwithstanding. (Jul. 20, 2026 Declaration of Carrie Wong, pp. 1–3.) This is sufficient to substantially comply with rule 3.1324(b) under the circumstances.

Accordingly, leave to amend is granted. The proposed third amended complaint is not deemed filed by this order **and must be separately filed within ten days of entry of the formal order**. Failure to do so may result in an *ex parte* application by defendants for dismissal.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court, which will prepare a formal order.

02:00 PM

25-CIV-02951 ANNA MOLINA VILLALOBOS, ET AL. VS. JING LI, ET AL.

LINE 4

ANNA MOLINA VILLALOBOS
JING LI

DESMOND B. TUCK
JOSHUA F. GONZALES

DEFENDANTS JING LI AND YING LI'S MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

Defendants Jing Li and Ying Li seek an order protecting them from responding to requests for admission ("RFAs") propounded by Plaintiff Anna Villalobos in excess of the statutory limit of 35 RFAs that may be propounded without a declaration justifying additional discovery.

Defendants' Motion for a Protective Order is GRANTED.

Plaintiff's request for judicial notice of public documents related to this matter is GRANTED.

Under Code of Civil Procedure § 2033.030(a), a party may serve no more than 35 RFAs unless the excess RFAs are supported by a declaration of necessity under Code of Civil Procedure § 2033.050 that, among other things, explains why additional discovery is justified by the complexity or quantity of issues in the case. (See Code Civ. Proc., §§ 2033.030, subds. (a)-(b), 2033.040, subd. (a), 2033.050.)

Code of Civil Procedure § 2033.050 sets forth the substance of what must be included in a declaration justifying additional discovery, including the following suggested language:

This number of requests for admission is warranted under Section 2033.040 of the Code of Civil Procedure because _____. (Here state the reasons why the complexity or the quantity of issues in the instant lawsuit warrant this number of requests for admission.)

Here, Plaintiff's section 2033.050 declaration states, in relevant part:

This number of requests is warranted under section 2033.040 of the Code of Civil Procedure because the issues in this case involve matters relating to complex boundary and construction dispute. Defendant cannot properly prepare for deposition or trial without obtaining written responses to these Requests for Admission. I am informed and believe that unless written responses to these Requests for Admission are received before further discovery is conducted, substantial expense would be incurred in attempting to solicit discoverable facts by deposition.

(Gonzales Decl. Ex. C, ¶ 5 and Ex. D, ¶ 5.)

Plaintiffs argue that the declaration adequately justifies additional discovery and that a party challenging the sufficiency of the declaration would "essentially need to show that the Declarant was lying about the need for additional RFAs." (Oppo., at p. 10:6-8.) Plaintiff cites no case law for that proposition.

Plaintiffs effectively parrot the statutory language governing requests for additional discovery and make a conclusory statement that the discovery is necessary. California courts consistently reject this approach, requiring factual specifications rather than boilerplate recitations of statutory language across all discovery contexts. (See, e.g., *People ex rel. Harris v. Sarpas* (2014) 225 Cal.App.4th 1539 [finding declaration did not support oppressive and duplicative interrogatories]; *Liberty Mut. Ins. Co. v. Superior*

Ct. (1992) 10 Cal.App.4th 1282 [boilerplate interrogatories insufficient to explore precise and pivotal issues]; *Day v. Rosenthal* (1985) 170 Cal.App.3d 1125 [rejecting boilerplate interrogatories]; *Hernandez v. Superior Ct.* (2003) 112 Cal.App.4th 285 [rejecting boilerplate responses given “without much consideration to their relevance to each interrogatory”]; *W. Pico Furniture Co. of Los Angeles v. Superior Ct. In & For Los Angeles Cnty.* (1965) 56 Cal.2d 407 [finding discovery objections not supported by evidence showing specific factual circumstances]; *Williams v. Superior Ct.* (2017) 3 Cal.5th 531 [same].)

“If the responding party seeks a protective order on the ground that the number of requests for admission is unwarranted, the propounding party shall have the burden of justifying the number of requests for admission.” (Code Civ. Proc., § 2033.040, subd. (b).)

Plaintiffs’ opposition to this motion fails to establish that the additional discovery is necessary based on the complexity or quantity of issues in this lawsuit.

The crux of Plaintiffs’ First Amended Complaint is that Plaintiffs have an implied easement giving them a right of ingress and egress across a driveway on Defendant’s property for the purpose of maintaining the northerly wall of the carport on Plaintiffs’ property, and that Defendants have blocked Plaintiffs’ access to that wall by installing a gate on their property. (FAC, ¶¶ 10, 11, 16.) Plaintiffs also allege that Defendants destroyed a berm directing rainwater away from Plaintiffs’ property, the construction of which was previously permitted by the previous owner of Defendant’s property. (FAC, ¶ 30.) On their face, the claims in this matter are not complex and Plaintiff’s opposition fails to establish otherwise. Nor does it establish why the additional requests for admission are necessary as opposed to available methods of discovery.

Accordingly, Defendants’ Motion for a Protective Order is GRANTED.

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02:00 PM

25-CIV-07589 EDGAR STAREN, M.D., PHD, MBA VS. JAMES VETTER, ET AL.

LINE 5

EDGAR STAREN, M.D., PHD, MBA
JAMES VETTER

SCOTT BONAGOFSKY
SUSANNAH K. HOWARD

DEFENDANT TRANSMED7, LLC'S PETITION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING:

Off calendar per stipulated Order.

02:00 PM

25-CIV-07589 EDGAR STAREN, M.D., PHD, MBA VS. JAMES VETTER, ET AL.

LINE 6

EDGAR STAREN, M.D., PHD, MBA
JAMES VETTER

SCOTT BONAGOFSKY
SUSANNAH K. HOWARD

DEFENDANTS JAMES VETTER AND TRANSMED7, LLC'S MOTION TO STAY PROCEEDINGS PENDING ARBITRATION

TENTATIVE RULING:

Off calendar per stipulated Order.

02:00 PM

25-CIV-07711 TRANSMED7, LLC, ET AL. VS. EDGAR STAREN, M.D., PH.D., MBA, ET AL.

LINE 7

TRANSMED7, LLC
EDGAR STAREN, M.D., PH.D., MBA

SUSANNAH K. HOWARD

MOTION / PETITION TO COMPEL ARBITRATION (*WITH RELATED CASE: 25CIV07589*)

TENTATIVE RULING:

Off calendar per stipulated Order.

**UD LAW AND MOTION CALENDAR
MONDAY, JULY 27, 2026**

02:00 PM

24-UDU-00963 KFF CETUS LLC VS. LEANDRO CASSIUS CASTROVIEJO

LINE 8

KFF CETUS LLC
LEANDRO CASSIUS CASTROVIEJO

STEPHANIE MARGOSSIAN
MARIO FAUSTO

MARIO FAUSTO'S MOTION TO BE RELIEVED AS COUNSEL FOR DEFENDANT

TENTATIVE RULING:

The unopposed motion of Mario Fausto to be relieved as counsel for defendant, Leandro Cassius Castroviejo, is GRANTED but is effective until no earlier than August 5, 2026 **and** after a proof of service on the client of a copy of the signed order (which will be issued on July 27, 2026), has been filed with the court.

Rules of Professional Conduct, rule 1.16(d), provides that an attorney shall not withdraw until he has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel. Here, a Notice of Settlement was filed on April 4, 2025. An OSC re dismissal is set on August 4, 2026. Granting the motion effective prior to August 4, 2026 will leave defendant without counsel for the OSC hearing.

And, pursuant to California Rules of Court, rule 3.1362, subdivision (e), the order also does not become effective until proof of service on the client of a copy of the signed order (which will be issued on July 27, 2026), has been filed with the court.

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02:00 PM

26-UDL-00636 ZIJING LIU VS. STEPHEN F. POWELL

LINE 9

ZIJING LIU

PRO PER

STEPHEN F. POWELL

PRO PER

DEFENDANT STEPHEN POWELL'S MOTION TO SET ASIDE DEFAULT/JUDGMENT

TENTATIVE RULING:

The Motion to Set Aside the Default Judgment by Defendant Stephen F. Powell ("Defendant") is DENIED. Defendant failed to file a proof of service with this Motion showing he properly served Plaintiff. Defendant's Motion also fails to comply with California Rules of Court, rule 3.1112(a), because it does not include a notice of hearing for the Motion and a memorandum. Even if the construed Defendant's "Motion" as a memorandum, Defendant fails to cite any legal authority pursuant to which he seeks relief. (See Cal. Rules of Court, rule 3.1113(b) ["The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced."].) It appears Defendant may be seeking relief under Code of Civil Procedure section 473, subdivision (b), but if so, Defendant has not provided a copy of his proposed answer as required. (See Code Civ. Proc., § 473, subd. (b).). He also fails to provide sufficient evidence to rebut the presumption he was properly served.

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POSTED: 11:10 AM